Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

2040 14th Street • 14th & Spruce Streets • Administrative Services Building, 2nd Floor • Boulder, Colorado 80302 • (303) 441-3930

May 30, 1989

Mr. Gerald Anderson
Southwest Portland Cement Co.
5134 Ute Highway
Lyons, CO 80540

Dear Mr. Anderson:

The purpose of this letter is to certify that at a hearing of the Board of County Commissioners of the County of Boulder, State of Colorado, duly called and held on May 30, 1989, in consideration of the request described as follows:

Docket #SU-88-21 Lyons Rubber Recycling Facility

the following action was taken:

> The Board of County Commissioners of Boulder County, State of Colorado, APPROVED the request for Special Use Site Specific Development Plan, and Certificate of Designation for Solid Waste Disposal Site, use of tires as fuel for cement manufacture subject to the following conditions:

1. That Southwestern Portland Cement Company obtain its revised Colorado Air Pollution Emission Permit before beginning to accept or burn shredded or whole tires.

2. That, starting on August 1, 1989 and on August 1st of each subsequent year, an annual report will be submitted to the Boulder County Land Use and Health Departments and the Colorado Department of Health. This report shall indicate on a monthly basis and annual total, the weight of whole and shredded tires received, the weight of whole tires shredded, the weight of whole and shredded tires utilized in the kiln, and the weight of whole and shredded tires in storage.

3. That RCRA EPA toxicity analyses, and analysis for toxic trace elements, of the kiln dust shall be performed for each 1,500 tons of tire material utilized during the first three months and for each 3,000 tons of material utilized in the following four months. A minimum of three separate such analyses shall be provided within the first seven months of operation. These results shall be reported to the Boulder County Land Use and Health Departments and to the State Health Department.

4. That mosquito and other vector control programs approved by the Boulder County Health Department be instituted as necessary to ensure that the tire storage areas do not increase area vector populations.

5. That Southwestern develop and implement a tire fire coordination program with the Lyons and Hygiene Fire Departments prior to bringing tires to the site. This program should

Josephine W. Heath
County Commissioner

Ronald K. Stewart
County Commissioner

Homer Page
County Commissioner